Louisiana AI in Schools Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Artificial Intelligence in Louisiana Schools: Guidance for K-12 Schools (Louisiana Department of Education, Fall 2026, updated 9.3.26)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Passages marked [graphic] were transcribed from table or graphic layouts and were not checked automatically; table cells are shown with the row label in bold followed by the cell text.

Guiding Principles (excerpt)

Source: page 2

- **Data Privacy and Security:** Robust data privacy and security measures must be in place to protect student and staff information and ensure compliance with relevant regulations.

What Is AI? (excerpt)

Source: page 3

- Personalize learning by supporting differentiated instruction based on students' learning needs, while preserving teacher judgment and student privacy.

A Shared Responsibility: Ensuring Safe Use of AI in Schools

Source: page 3

The integration of AI also introduces new considerations for student safety, especially concerning data privacy and cybersecurity. Ensuring the safe use of AI in schools is a shared responsibility among the State, educators, school leaders, families, students, technology providers, and other partners. Through these collective efforts, the LDOE seeks to foster a learning environment where AI is leveraged responsibly to empower Louisiana students.

Awareness and Foundations: Transparency and Stakeholder Engagement (excerpt)

Source: page 6 [graphic]

[graphic] **Transparency and Stakeholder Engagement** — School systems should proactively engage stakeholders in discussions about the integration of AI in K-12 classrooms. This includes providing clear, accessible information about the specific AI tools being used, their purpose, potential benefits and risks, and measures taken to ensure student privacy and data security. Figure A3 provides a sample letter for communication with families.

Training and Support: Educational Technology Staff Members (excerpt)

Source: page 7 [graphic]

[graphic] **Educational Technology Staff Members** — Educational technology staff members who support K-12 classrooms should receive high-quality professional learning on integrating AI technologies in schools, data security and privacy, and troubleshooting technical issues. Including educational technology leaders in an advisory team to inform the integration of AI in education is crucial for ensuring safety and data privacy.

AI Competencies by Grade Band: Grades 3–5, Responsible Use and Critical Thinking (excerpt)

Source: page 11

- Discuss responsible AI use by recognizing basic considerations related to fairness, privacy, and accuracy.
- Identify what personal information should or should not be shared when using AI tools.

AI Competencies by Grade Band: Grades 6–8, Responsible Use and Critical Thinking (excerpt)

Source: page 12

- Discuss ethical considerations in AI, including privacy and digital safety.

AI Competencies by Grade Band: Grades 9–12 (excerpt)

Source: page 13

Responsible Use and Critical Thinking

- Analyze how AI systems handle personally identifiable information (PII), evaluate trade-offs between personalization and privacy, and recommend appropriate safeguards in AI applications.

Pathways and Partnerships for the Future

- Understand regulatory, privacy, and intellectual property considerations in AI use.

Responsible Use and Critical Thinking

Source: page 14

Educators and school systems should consider privacy, security, and legal requirements when using AI, while thoughtfully weighing both the benefits and the tradeoffs of applying AI to specific tasks. The use of AI should be accompanied by ongoing attention to safety, compliance, and rich philosophical discussions of its impact on individuals, communities, and society.

School and System Leader Competency: Follow applicable laws and privacy protections, and ensure transparency in AI adoption, while weighing tradeoffs.

Teacher Competency: Guide students in ethical AI use, protect privacy, uphold academic integrity, and maintain educator professional autonomy.

Student Competency: Evaluate AI outputs, protect personal information, and consider ethical impacts.

[graphic] **Data Sharing Agreements** — In compliance with R.S. 17:3913, Data-Sharing Agreements (DSAs) between AI vendors and school systems must be crafted to ensure compliance with privacy regulations and safeguard sensitive student information, including video and audio recordings, among other data. The LDOE website provides more information regarding DSAs.

[graphic] **Monitoring Use** — Schools should have clear directives on how AI-driven technologies are to be used and monitored in the classroom. Teachers and facilitators should actively monitor student usage of software and devices to ensure a focused and productive learning environment.

This includes regular check-ins and feedback within educational software, utilizing screen-sharing tools, and reviewing student progress. Classrooms should be arranged to allow for greater visibility of student screens. School leaders should ensure that faculty and staff members are familiar with the educational software and tools available to them to monitor students' use.

AI Use Shared Agreements (excerpt)

Source: page 17 [graphic]

[graphic] **Student privacy comes first.** — Do not enter personally identifiable information (PII), including student names, IDs, IEP/504 information, health or discipline information, identifiable student work, or other sensitive data into AI tools unless the tool has been approved for that specific use and the school system has verified data protections.

AI Use Decision Tree (excerpt)

Source: page 18 [graphic]

[graphic] Before using AI for any lesson, assignment, assessment, workflow, or student activity, ask the following questions.

- [graphic] 1. Does this AI use protect student privacy and avoid PII or other sensitive data? NO: STOP–Do not use AI until privacy concerns are addressed.
- [graphic] 6. Is the AI tool approved and appropriate under local policy, procurement, privacy, accessibility, age, and security requirements? NO: Use an approved tool or obtain required approval.

Universal AI Tools in K-12 Schools: K-12 Implementation Notes (excerpt)

Source: page 19

- Any student-facing use must follow age, consent, privacy, and state requirements in addition to local policy requirements or restrictions.
- School systems should review current terms, age requirements, approved access models, and privacy protections before any use, noting that some consumer accounts are limited to users age 18 or older.
- Confirm locally which OS experiences are enabled for use, whether users have approved school accounts, and whether appropriate data protections are applied. When using enterprise accounts, ensure that data protection includes safeguards to ensure that prompts and responses are not used to train foundation models.

Evaluating AI Technology (excerpt)

Source: page 21

Overview

As AI tools become more widely available for teaching, learning, and school operations, school systems must ensure they are implemented in ways that protect student data, support educators' decision-making, and align with HQIM.

The rubric is designed to support collaborative review by individuals with expertise in instructional practice, technology systems, and data privacy.

How should this rubric be used? (excerpt)

2. Verify Required Conditions: Before completing the evaluation rubric, the review team may confirm that the proposed AI tool meets baseline requirements related to student and employee data privacy, cybersecurity, and system compatibility.

5. Monitor and Reevaluate: If the AI tool is adopted or piloted, the system may periodically review its use and impact. Ongoing monitoring can help ensure that data protections remain in place and that the tool continues to support instructional goals.

AI Technology Evaluation Rubric (excerpt)

Source: page 22

These sections guide school systems in considering factors related to data protection, instructional integrity, product usability, educator support, and system-level oversight when evaluating AI-enabled tools. The results of this rubric should be considered alongside existing school system technology review processes, instructional priorities, and applicable policies related to student data privacy, cybersecurity, and instructional materials.

AI Technology Evaluation Rubric, Section 1: Safety, Security, and Product Access

Source: pages 22–24 [graphic]

Data Sharing Agreement (DSA)

- [graphic] Is there a DSA procedure in place, if needed, that includes permitted data uses, confidentiality, redisclosure limits, subprocessors, breach and incident notification, retention/deletion, data return, certified deletion, audit or verification rights, encryption, access controls, secure transfer, and vendor personnel access?
- [graphic] Is the vendor willing to sign the DSA according to any additional school system-required conditions?
- [graphic] Has the school system consulted legal counsel and the technology team?

Data Collection, Storage, and Use

- [graphic] What types of student, employee, or user data does the AI tool collect?
- [graphic] Does the vendor clearly explain how collected data will be used within the product?
- [graphic] How is collected data stored and protected, and what security measures are in place?
- [graphic] Does the vendor provide clear policies for how long data is retained and when it will be deleted?
- [graphic] Is there confirmation that identifiable student, employee, or user data is not used for model training, product improvement, analytics, or future AI model development unless expressly authorized through the school system's legal/privacy process? Can the school system opt out of model training or secondary data use?

- [graphic] If the AI tool collects or uses student data in ways that may require parental consent, does the vendor provide clear information and processes that allow school systems to obtain and manage that consent?

Student Data Privacy Compliance

- [graphic] Does the vendor demonstrate compliance with applicable student data privacy laws and policies and provide clear documentation of data handling practices?
- [graphic] Upon termination or non-renewal, does the vendor return all school-system data in a usable format and certify deletion within a defined period, including deletion from backups, subprocessors, derived datasets, and any model-training corpora where applicable?
- [graphic] How will the school system ensure secure data storage practices, obtain parental consent when necessary, and provide transparency when AI systems collect, process, and utilize student data?
- [graphic] Do dashboards, reports, exports, and sharing features include controls such as role-based access, least privilege, export restrictions, masking or aggregation, audit logs, secure downloads, external sharing controls, and the ability to disable unnecessary reports or exports?

Cybersecurity

- [graphic] Does the vendor provide documentation of security practices such as System and Organization Controls 2 (SOC 2) or similar cybersecurity standards?
- [graphic] Has this documentation been reviewed by the system's technology experts and legal counsel?

Authentication

- [graphic] Does the tool support school system authentication methods such as Single Sign-On (SSO) or other secure login processes?

Transparency and Human Oversight (excerpt)

- [graphic] Are safeguards in place to prevent harmful, biased, or inappropriate AI-generated content, including processes and timelines for AI-specific incidents, prompt injection, jailbreaks, data poisoning, harmful outputs, model drift, vendor breach, unauthorized disclosure, and misuse of data?
- [graphic] Does the vendor identify all underlying AI/foundation models, model owners, hosting and processing locations, and subprocessors? Can the vendor confirm that no component is owned by, controlled by, or transmits data to a foreign adversary or nation-state entity, and that the tool is not on any applicable federal or state prohibited-software list?

AI Technology Evaluation Rubric, Section 5: Administrative Controls, Communication (excerpt)

Source: page 27 [graphic]

- [graphic] If parent/guardian communication is available, are safeguards in place to ensure communication aligns with school system policies and protects student privacy?

Relevant Laws and Policies

Source: page 28 [graphic]

The integration of AI in Louisiana K-12 schools requires an understanding of existing laws and policies that govern student rights, data protection, and the use of technology. LDOE recommends that all school systems consult their legal counsel before integrating any technologies that could compromise student or employee privacy.

[graphic] **Family Educational Rights and Privacy Act (FERPA)** — School systems should use due diligence when integrating AI technologies in K-12 classrooms to ensure the protection of students' educational records. Student data should not be stored or utilized with AI technologies in a way that risks the privacy of protected student information.

[graphic] **Louisiana's Employee Information Laws – LA R.S. 17:3884; LA R.S. 17:440** — LA R.S. 17:3884 protects school employees' personally identifiable evaluation data and results, including but not limited to student learning targets, teacher observations, and value-added teacher assessment data. LA R.S. 17:440 prohibits the use of Social Security numbers as a personal identifier for school personnel. School systems should use due diligence when integrating AI technologies into these processes to protect employee information.

[graphic] **Children's Internet Protection Act (CIPA)** — CIPA relates to AI use in schools by requiring school systems receiving E-rate discounts to protect students from harmful material, including when AI systems access or filter online content. This includes filtering content on school networks and devices and ensuring that students' online activities are monitored to maintain a safe and secure online environment.

[graphic] **Children's Online Privacy Protection Rule (COPPA)** — COPPA generally requires covered operators to obtain verifiable parental consent before collecting personal information from children under 13. Schools may consent on a parent's behalf when an AI tool collects information solely for a school-authorized educational purpose, but the operator remains responsible for COPPA compliance.

[graphic] **Individuals with Disabilities Education Act (IDEA)** — Emerging AI technologies have the potential to serve students with disabilities by offering innovative ways to enhance their education. However, such technologies should be used only if they do not interfere with eligible students' safety, privacy, and access to a free appropriate public education.

[graphic] **Louisiana's Student Transparency and Privacy Laws – LA R.S. 17:3913; LA R.S. 17:3914** — LA R.S. 17:3913 pertains to transparency in educational practices. This law emphasizes transparency by requiring educational institutions to disclose information and processes related to educational policies and practices. LA R.S.17:3914 focuses on student information; privacy; legislative intent; definitions; prohibitions; parental access; and penalties.

Glossary of Common Terms (excerpt)

Source: pages 29–30 [graphic]

[graphic] **Cybersecurity** — Cybersecurity is the practice of protecting systems, networks, and data from unauthorized access, use, disclosure, disruption, modification, or destruction. AI plays an increasingly important role in cybersecurity by helping to analyze vast amounts of data to identify threats, automate security tasks, and improve overall security posture.

[graphic] **Data governance** — The process of managing the availability, usability, integrity, and security of the data in enterprise systems is based on internal data standards and policies that also control data usage. Effective data governance ensures that data is used properly and ethically.

[graphic] **Data privacy** — The aspect of digital technology that deals with the proper handling, processing, and storage of personal information to protect student and staff privacy and comply with legal standards.

[graphic] **Generative AI** — AI that produces new content, such as text, images, audio, video, code, or simulations, in response to user inputs. Its use raises considerations related to accuracy, privacy, and academic integrity.

Sample Family Letter (excerpt)

Source: page 31

Privacy and Security: AI use will align with regulations protecting student data privacy, safety, and accessibility.

We remind parents and guardians that AI tools may have age restrictions. For example, ChatGPT currently requires users to be at least 13 years old and requires parental or legal guardian consent for students between the ages of 13 and 18. The website warns that “ChatGPT may produce output that is not appropriate for all audiences or all ages, and educators should be mindful of that while using it with students or in classroom contexts.”